

INTELLECTUAL PROPERTY LICENSE AGREEMENT

Between Jon Adams Halstead (Licensor) and AAES-OS, Inc. (Licensee)

Agreement Reference:	AAES-OS-IPLA-001
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Status:	EXECUTION DRAFT — Pending Legal Review and Signature
Cross-Reference:	AAES-OS Builder's Charter v1.0 AAES-OS Founding Structure and Equity Framework v1.0 AAES-OS D-3 Tri-Core Founding Contribution Registry v1.0 (Entry 001)

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RECITALS

WHEREAS, Jon Adams Halstead (hereinafter "**Licensor**") is the sole original creator and owner of the AAES-OS foundational intellectual property, including but not limited to the system architecture, Genesis Protocol, Sovereign Substrate, Lawbook Framework, and all related foundational doctrine and design artifacts, as documented in the AAES-OS D-3 Tri-Core Founding Contribution Registry, Entry 001;

WHEREAS, AAES-OS, Inc. (hereinafter "**Licensee**" or "**Company**") is or will be a duly organized legal entity formed for the purpose of commercializing, developing, and deploying products and services built upon the Licensed IP;

WHEREAS, the Licensor desires to grant the Licensee a license to use, build upon, and commercialize the Licensed IP under the terms and conditions set forth herein, while retaining ownership of and custodial authority over the origin architecture; and

WHEREAS, the parties intend that this Agreement serve as the formal instrument defining the relationship between the Licensor's origin IP and the Company, consistent with the governing principles established in the AAES-OS Founding Structure and Equity Framework;

NOW, THEREFORE, in consideration of the mutual covenants set forth herein, the royalty and equity arrangements described below, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE 1 — DEFINITIONS

Section 1.1 — Defined Terms

The following terms, when used in this Agreement with initial capital letters, shall have the meanings set forth below:

1. **1.1.1 "Licensed IP"** means all intellectual property owned by the Licensor relating to the AAES-OS system as documented in the D-3 Tri-Core Founding Contribution Registry (Entry 001), including: (a) the AAES-OS Foundation and original system architecture; (b) the Genesis Protocol; (c) the Sovereign Substrate; (d) the Lawbook Framework; (e) all original architectural doctrine, system design documents, conceptual frameworks, and directional specifications authored by the Licensor; (f) the AAES-OS name, mark, and foundational identity; and (g) all derivative works of the foregoing created solely by the Licensor.
2. **1.1.2 "Licensed Products"** means any software, platform, service, API, integration, or commercial offering developed by the Licensee that incorporates, is derived from, or is enabled by the Licensed IP.
3. **1.1.3 "Licensee Contributions"** means all intellectual property created by Dar-z Morris and Daniel Hatton in their capacity as Founding Contributors, as documented in the D-3 Tri-Core Founding Contribution Registry (Entries 002 and 003). Licensee Contributions are distinct from the Licensed IP and are not subject to the royalty provisions of this Agreement.
4. **1.1.4 "Net Revenue"** means gross revenue received by the Licensee from Licensed Products, less: (a) refunds and chargebacks; (b) applicable sales taxes and VAT collected; and (c) third-party payment processing fees not to exceed five percent (5%) of gross revenue.
5. **1.1.5 "Licensing Revenue"** means revenue received by the Licensee from sublicensing the Licensed IP or any component thereof to third parties.
6. **1.1.6 "Royalty"** means the periodic payment owed by the Licensee to the Licensor as defined in Article 4.
7. **1.1.7 "Architectural Authority"** means the Licensor's right, reserved under this Agreement, to review, approve, or reject proposed changes to the Licensed IP's core architectural layer, as further defined and governed by Article 6.

8. **1.1.8 "Assignment Event"** means a voluntary transfer of full IP ownership from the Licensors to the Licensee, which may only occur pursuant to a separate, signed IP Assignment Agreement as described in Article 10.
9. **1.1.9 "Change of Control"** means: (a) the acquisition by any person or entity of more than fifty percent (50%) of the voting equity of the Licensee; (b) a merger or consolidation in which the Licensee is not the surviving entity; or (c) the sale of all or substantially all of the Licensee's assets.
10. **1.1.10 "Governing Documents"** means, collectively: the AAES-OS Builder's Charter v1.0, the AAES-OS Founding Structure and Equity Framework v1.0, and the AAES-OS D-3 Tri-Core Founding Contribution Registry v1.0.

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ARTICLE 2 — GRANT OF LICENSE

Section 2.1 — License Grant

The Licensors hereby grants to the Licensee, subject to the terms and conditions of this Agreement, a worldwide, non-transferable (except as provided in Section 2.4), exclusive license to:

11. Use the Licensed IP for the purpose of developing, operating, and commercializing Licensed Products;
12. Create derivative works of the Licensed IP for incorporation into Licensed Products, subject to the Architectural Authority provisions of Article 6;
13. Sublicense the Licensed IP to customers and partners solely as embedded in or as a component of Licensed Products, subject to Section 2.3; and
14. Use the AAES-OS name and foundational mark in connection with Licensed Products, subject to brand standards established by the Licensors.

Section 2.2 — Scope of Exclusivity

The license granted in Section 2.1 is exclusive within the field of use defined as: enterprise AI operating systems, governed AI runtime environments, and AI-human collaboration platforms. The Licensor retains the right to use the Licensed IP for non-commercial, academic, and personal research purposes. Any expansion of the field of use beyond the foregoing definition requires a written amendment to this Agreement executed by both parties.

Section 2.3 — Sublicensing

The Licensee may sublicense the Licensed IP to third parties solely as part of a Licensed Product, subject to the following conditions:

15. All sublicenses must include terms at least as protective of the Licensed IP as those set forth in this Agreement;
16. The Licensee shall remain fully liable to the Licensor for any breach by a sublicensee;
17. The Licensee shall provide the Licensor with a complete list of all active sublicenses upon written request; and
18. All Licensing Revenue derived from sublicenses is subject to the Royalty provisions of Article 4.

Section 2.4 — Non-Transferability and Assignability

This license may not be assigned, transferred, or sublicensed by the Licensee except: (a) to a wholly owned subsidiary of the Licensee, with prior written consent of the Licensor; or (b) in connection with a Change of Control, subject to the provisions of Article 9. Any attempted assignment in violation of this Section is void ab initio and of no legal effect.

Section 2.5 — Reservation of Rights

The Licensor expressly reserves all rights in the Licensed IP not expressly granted in this Article 2. This Agreement does not transfer ownership of the Licensed IP. The Licensor retains full title to the Licensed IP at all times unless and until an

Assignment Event occurs pursuant to a separately executed instrument as described in Article 10.

ARTICLE 3 — OWNERSHIP AND IP PROTECTION

Section 3.1 — Licensors Ownership

The Licensee acknowledges and agrees that: (a) the Licensed IP is and shall remain the sole and exclusive property of the Licensor; (b) nothing in this Agreement shall be construed as a transfer or assignment of any ownership interest in the Licensed IP to the Licensee; and (c) the Licensee shall not take any action inconsistent with the Licensor's ownership of the Licensed IP, including without limitation any challenge to the validity or ownership of the Licensed IP in any legal, administrative, or regulatory proceeding.

Section 3.2 — Derivative Works

Any derivative work of the Licensed IP created by or on behalf of the Licensee ("**Derivative Works**") shall be: (a) owned by the Licensee to the extent of the Licensee's original contribution thereto; (b) subject to the Licensor's Architectural Authority under Article 6 to the extent they modify or build upon the core Licensed IP; and (c) sublicensed back to the Licensor on a perpetual, royalty-free, non-exclusive basis for use in connection with the Licensor's reserved rights under Section 2.5. For the avoidance of doubt, Derivative Works do not reduce or modify the Licensor's ownership of the underlying Licensed IP on which they are based.

Section 3.3 — Licensee IP

Licensee Contributions (as defined in Section 1.1.3) are and shall remain the property of the Licensee or its founding contributors as documented in the Governing Documents. This Agreement does not grant the Licensor any ownership interest in Licensee Contributions, except for the limited sublicense described in Section 3.2(c) to the extent Licensee Contributions are inseparably embedded in Derivative Works.

Section 3.4 — IP Registration and Protection

The Licenser shall have the right, but not the obligation, to seek patent, trademark, copyright, or other intellectual property protection for the Licensed IP at the Licenser's expense. The Licensee shall cooperate reasonably in connection with any such registration efforts, including executing documents as reasonably requested, and shall not take any action that would impair the Licenser's ability to protect the Licensed IP. The Licensee may seek intellectual property protection for Licensee Contributions and Derivative Works at its own expense and in its own name.

Section 3.5 — No Encumbrance

The Licensee shall not pledge, mortgage, encumber, lien, or otherwise hypothecate the Licensed IP or any interest in this license as collateral or security for any financing arrangement, debt obligation, or other instrument without the express prior written consent of the Licenser, which may be withheld in the Licenser's sole discretion.

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ARTICLE 4 — ROYALTIES AND FINANCIAL TERMS

Section 4.1 — Founder Equity Position

In partial consideration for the license granted herein, the Licenser shall receive an equity position in the Licensee as follows:

[PLACEHOLDER — Specific percentage to be defined in the Capitalization Table executed at company formation, consistent with the Licenser's Founder position as described in the AAES-OS Founding Structure and Equity Framework v1.0.]

The equity position shall be documented in the Licensee's organizational documents and shall not be subject to the same vesting schedule applied to Founding Contributors, consistent with the Licenser's status as origin IP holder and architect of record.

Section 4.2 — Licensing Revenue Royalty

In addition to the equity position described in Section 4.1, the Licensors shall receive a royalty on Licensing Revenue equal to:

[PLACEHOLDER — Percentage to be negotiated and inserted prior to execution. Recommended range: 5%–15% of Licensing Revenue. See Exhibit B.]

This royalty reflects the Licensors's first-position right in Licensing Revenue as the origin IP holder, as established in the AAES-OS Founding Structure and Equity Framework. The applicable rate shall be set forth in Exhibit B once finalized by the parties.

Section 4.3 — SaaS and Product Revenue

The Licensors shall not receive a direct Royalty on SaaS revenue or other product revenue from Licensed Products beyond the Licensors's equity participation described in Section 4.1. Value from SaaS and product revenue flows to the Licensors through the equity position, dividends, and distributions as governed by the Licensee's organizational documents and applicable corporate law. This Section does not preclude separate compensation arrangements between the Licensors and Licensee for services rendered in an executive or advisory capacity.

Section 4.4 — Royalty Reporting and Payment

19. The Licensee shall deliver to the Licensors a written quarterly royalty report within thirty (30) days after the end of each calendar quarter, setting forth in reasonable detail the Licensing Revenue received during that quarter and the applicable royalty calculation;
20. Royalties owed pursuant to Section 4.2 shall be paid within forty-five (45) days after the end of each calendar quarter by wire transfer or other method mutually agreed by the parties;
21. The Licensors shall have the right, upon ten (10) business days' prior written notice, to engage an independent certified public accountant to audit the Licensee's books and records for the purpose of verifying royalty calculations. Such audits shall occur no more than once per calendar year

and shall be conducted during normal business hours with reasonable advance coordination; and

22. If any audit reveals an underpayment of more than five percent (5%) of the amount owed for the audited period, the Licensee shall bear the reasonable cost of such audit, in addition to promptly paying the full amount of any underpayment together with interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by applicable law.

Section 4.5 — Taxes

Each party shall be solely responsible for its own income and other taxes arising from payments made or received under this Agreement. If the Licensee is required by applicable law to withhold any taxes from Royalty payments owed to the Licensor, the Licensee shall: (a) remit such withheld amounts to the applicable tax authority; (b) provide the Licensor with appropriate documentation of such withholding; and (c) gross up all payments so that the Licensor receives the full net Royalty amount after withholding as if no withholding obligation applied.

ARTICLE 5 — TERM AND TERMINATION

Section 5.1 — Term

This Agreement shall commence on the Effective Date and, unless earlier terminated pursuant to this Article 5, shall continue in perpetuity. The parties acknowledge that the perpetual nature of this license reflects the foundational relationship between the origin IP and the operating company.

Section 5.2 — Termination for Cause

Either party may terminate this Agreement upon written notice if the other party:

23. Materially breaches any provision of this Agreement and fails to cure such breach within sixty (60) days after receiving written notice describing the breach in reasonable detail (provided that if the breach is not capable of cure within such period, the breaching party shall have commenced cure within such period and diligently pursued cure to completion);

24. Becomes insolvent, makes a general assignment for the benefit of creditors, or has a receiver, trustee, or liquidator appointed for substantially all of its assets; or
25. Commences, or has commenced against it, any proceeding under any bankruptcy, insolvency, reorganization, or similar law that is not dismissed or discharged within ninety (90) days of commencement.

Section 5.3 — Licensor Termination Rights

The Licensor may additionally terminate this Agreement upon ninety (90) days' written notice to the Licensee if:

26. The Licensee takes any deliberate action that, in the Licensor's reasonable judgment, materially threatens the integrity, reputation, or foundational design of the Licensed IP;
27. The Licensee attempts to encumber, assign, or transfer the Licensed IP or any interest in this license in violation of Article 3 or Section 2.4; or
28. The Licensee initiates, sponsors, or materially supports any legal or administrative proceeding that challenges or disputes the Licensor's ownership of or title to the Licensed IP.

Section 5.4 — Effect of Termination

Upon expiration or termination of this Agreement for any reason:

29. All licenses granted hereunder shall immediately cease and be of no further force or effect;
30. The Licensee shall promptly cease all use of the Licensed IP and, within thirty (30) days of the effective date of termination, either return to the Licensor or certify in writing the complete destruction of all copies, embodiments, and documentation of the Licensed IP in its possession or control;
31. All accrued Royalty obligations shall survive termination and become immediately due and payable as of the termination date; and

32. The following Sections and Articles shall survive termination of this Agreement: Article 1, Section 3.1, Section 3.2, Section 4.4, Article 7, Article 8, and Article 11.

Section 5.5 — Transition Period

Notwithstanding Section 5.4(a), upon termination of this Agreement, the Licensee shall have a one hundred eighty (180)-day wind-down transition period during which it may continue to operate and provide existing customers with access to Licensed Products, solely to the extent necessary to fulfill existing contractual obligations entered into prior to the termination date. The Licensee shall pay all applicable Royalties on revenue earned during the transition period and shall make no new commitments to customers or partners that would extend use of the Licensed IP beyond the transition period.

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ARTICLE 6 — ARCHITECTURAL AUTHORITY

Section 6.1 — Reservation of Architectural Authority

The Licensor reserves the right to exercise Architectural Authority over the Licensed IP as defined in this Article. Architectural Authority is the mechanism by which the Licensor ensures that the Licensee's use of, and development upon, the Licensed IP does not compromise the foundational integrity, coherence, or governing principles of the origin architecture. This right is personal to the Licensor and may not be delegated or assigned except by written amendment to this Agreement.

Section 6.2 — Scope of Architectural Authority

Architectural Authority applies to the following categories of proposed action by the Licensee:

33. Proposed changes to the core behavioral rules of the Genesis Protocol;

- 34. Modifications to the operational boundaries or sovereign layer logic of the Sovereign Substrate;
- 35. Changes to the fundamental authority structure, rule-enforcement hierarchy, or governing logic of the Lawbook Framework; and
- 36. Any modification to the Licensed IP that would alter, override, or contradict the foundational architectural doctrine on which the AAES-OS system is premised as defined in the Governing Documents.

Architectural Authority does not apply to, and the Licensors shall exercise no review rights over, the following:

- 37. Licensee Contributions and Derivative Works that extend, implement, or build upon the Licensed IP without modifying its core architectural logic;
- 38. Engineering, infrastructure, and platform implementation decisions within the Licensee's Execution Core; and
- 39. Commercial, product design, marketing, go-to-market, pricing, or business operations decisions.

Section 6.3 — Review Process

For any proposed change subject to Architectural Authority under Section 6.2, the following process shall govern:

- 40. The Licensee shall submit a written architectural change proposal to the Licensors, setting forth in reasonable detail the nature and rationale of the proposed change, its intended scope, and its effect on the relevant component of the Licensed IP;
- 41. The Licensors shall have twenty-one (21) calendar days following receipt of a complete proposal to approve, reject, or request modification of the proposal in writing;
- 42. If the Licensors does not respond within the twenty-one (21)-day review period, the proposal shall be deemed approved; and

43. The Licensors shall not unreasonably withhold, condition, or delay approval for changes that are consistent with the foundational intent of the Licensed IP and do not compromise core architectural principles.

Section 6.4 — Consistency with Builder's Charter

The Licensors' exercise of Architectural Authority shall at all times be consistent with the architectural stewardship principles established in the AAES-OS Builder's Charter v1.0. The Licensors may not use Architectural Authority as a mechanism to interfere with the Licensee's legitimate commercial operations, personnel decisions, or platform contributions that do not affect the core Licensed IP. Systematic misuse of Architectural Authority as a blocking mechanism contrary to the Builder's Charter principles shall constitute a material breach of this Agreement by the Licensors.

ARTICLE 7 — REPRESENTATIONS AND WARRANTIES

Section 7.1 — Licensors Representations

The Licensors represent and warrant to the Licensee, as of the Effective Date and on a continuing basis, that:

44. The Licensors are the sole author and exclusive owner of the Licensed IP and has the full legal right, power, and authority to enter into this Agreement and to grant the licenses herein without the consent of any third party;

45. To the Licensors' knowledge, the Licensed IP, as it exists as of the Effective Date, does not infringe upon, misappropriate, or otherwise violate the intellectual property rights of any third party;

46. The Licensed IP is not, as of the Effective Date, subject to any lien, encumbrance, license, assignment, restriction, or obligation that would conflict with or impair the rights granted to the Licensee herein; and

47. There is no pending or, to the Licensors' knowledge, threatened claim, action, suit, or proceeding before any court, arbitral tribunal, or governmental authority challenging the Licensors' ownership of, or right to license, the Licensed IP.

Section 7.2 — Licensee Representations

The Licensee represents and warrants to the Licensors, as of the Effective Date and on a continuing basis, that:

- 48. The Licensee is, or upon formation will be, a duly organized and validly existing legal entity with full authority to enter into and perform this Agreement;
- 49. The Licensee's use of the Licensed IP under this Agreement will at all times comply with all applicable laws, regulations, and governmental orders; and
- 50. The Licensee will not use the Licensed IP in any manner that disparages, misrepresents, or materially damages the Licensors' reputation or the integrity of the origin architecture.

Section 7.3 — Disclaimer

EXCEPT AS EXPRESSLY SET FORTH IN SECTION 7.1, THE LICENSED IP IS PROVIDED "AS IS." THE LICENSOR MAKES NO WARRANTIES, EXPRESS OR IMPLIED, WITH RESPECT TO THE LICENSED IP, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. THE LICENSOR DOES NOT WARRANT THAT THE LICENSED IP WILL BE ERROR-FREE OR THAT USE OF THE LICENSED IP WILL ACHIEVE ANY PARTICULAR COMMERCIAL RESULT.

ARTICLE 8 — INDEMNIFICATION AND LIMITATION OF LIABILITY

Section 8.1 — Licensee Indemnification

The Licensee shall indemnify, defend, and hold harmless the Licensors and his successors, heirs, and assigns from and against any and all third-party claims, demands, actions, damages, liabilities, losses, costs, and expenses (including reasonable attorneys' fees) arising from or relating to: (a) the Licensee's use, deployment, or commercialization of the Licensed IP; (b) any Licensed Product; (c) the Licensee's breach of any representation, warranty, or obligation under this Agreement; or (d) any Licensee Contribution that infringes or is alleged to infringe a third party's intellectual property rights.

Section 8.2 — Licensors Indemnification

The Licensor shall indemnify, defend, and hold harmless the Licensee, its officers, directors, and agents from and against any third-party claims arising from a material breach of the Licensor's representations set forth in Section 7.1, provided that: (a) the Licensee notifies the Licensor promptly in writing of any such claim upon becoming aware of it; (b) the Licensor is given reasonable control of the defense and settlement of such claim; and (c) the Licensee cooperates fully and at the Licensor's expense in the defense of such claim.

Section 8.3 — Limitation of Liability

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES OF ANY KIND, INCLUDING LOST PROFITS, LOSS OF BUSINESS OPPORTUNITY, OR LOSS OF DATA, ARISING OUT OF OR RELATED TO THIS AGREEMENT OR THE USE OF THE LICENSED IP, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THE TOTAL AGGREGATE LIABILITY OF THE LICENSOR UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL ROYALTIES ACTUALLY PAID BY THE LICENSEE TO THE LICENSOR IN THE TWELVE (12) CALENDAR MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM. NOTHING IN THIS SECTION LIMITS EITHER PARTY'S LIABILITY FOR FRAUD, WILLFUL MISCONDUCT, OR INDEMNIFICATION OBLIGATIONS UNDER THIS ARTICLE.

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ARTICLE 9 — CHANGE OF CONTROL

Section 9.1 — Notice Requirement

The Licensee shall provide the Licensor with at least thirty (30) days' prior written notice of any anticipated Change of Control transaction. Such notice shall include a reasonable description of the proposed transaction and the identity of the acquiring

party. Failure to provide timely notice shall constitute a material breach of this Agreement.

Section 9.2 — Licensor Rights Upon Change of Control

Upon a Change of Control, the following provisions shall apply:

51. This Agreement shall be assignable to the acquirer subject to the Licensor's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed where the acquirer agrees in writing to assume all obligations hereunder;
52. The Licensor shall have the right to renegotiate the Royalty rate applicable to Licensing Revenue in good faith prior to or concurrent with the closing of the Change of Control, to reflect any changed circumstances resulting from the transaction;
53. Any assignment of this Agreement to an acquirer shall require the acquirer to execute a written assumption agreement, in form and substance reasonably acceptable to the Licensor, by which the acquirer assumes all obligations of the Licensee under this Agreement; and
54. The Licensor's equity position in the original Licensee entity and any associated liquidation preferences, anti-dilution rights, or conversion rights shall be governed exclusively by the Licensee's organizational documents and applicable law — this Agreement does not modify, limit, or expand those rights.

Section 9.3 — Unassigned Licensed IP

If the Licensed IP has not been formally assigned to the Licensee pursuant to a completed Assignment Event at the time of a Change of Control, the acquirer takes the company subject to this License Agreement and receives only those rights expressly granted herein. Under no circumstances shall a Change of Control, in and of itself, result in a transfer of ownership of the Licensed IP to the acquirer or to the Licensee. Any such transfer requires a separately negotiated and executed IP Assignment Agreement as described in Article 10.

ARTICLE 10 — OPTIONAL IP ASSIGNMENT

Section 10.1 — Right to Negotiate Assignment

Nothing in this Agreement obligates the Licensor to assign ownership of the Licensed IP to the Licensee, and no provision of this Agreement shall be construed as creating any obligation, option, right of first refusal, or expectation of assignment. The transfer of ownership of the Licensed IP, in whole or in part, may only occur through a separate, written IP Assignment Agreement negotiated and executed by the Licensor as a free, deliberate, and uncoerced act.

Section 10.2 — Conditions for Assignment

Any future IP Assignment Agreement, if voluntarily entered into, must at a minimum:

- 55. Be negotiated in good faith between the parties, with each party represented by independent legal counsel of its choosing;
- 56. Include consideration commensurate with the independently determined fair market value of the Licensed IP being assigned at the time of the assignment;
- 57. Be executed by the Licensor without duress, undue influence, or coercion of any kind; and
- 58. Specifically identify with particularity which elements of the Licensed IP are being assigned and which elements, if any, are being retained by the Licensor.

Section 10.3 — Effect on This Agreement

Upon execution and delivery of a complete IP Assignment Agreement covering all Licensed IP, this License Agreement shall terminate by operation of merger, as the license shall merge with the underlying ownership conveyed by the assignment. If a partial assignment occurs covering only specified elements of the Licensed IP, this Agreement shall continue in full force and effect with respect to any Licensed IP retained by the Licensor, and the parties shall execute a written amendment hereto identifying which elements remain subject to this license.

ARTICLE 11 — GENERAL PROVISIONS

Section 11.1 — Governing Law; Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles. Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or validity thereof, shall be submitted first to good-faith mediation for a period of not less than thirty (30) days before either party may initiate litigation or arbitration. The parties shall cooperate in selecting a neutral mediator and shall share the costs of mediation equally.

Section 11.2 — Entire Agreement

This Agreement, together with the Governing Documents referenced herein and the Exhibits attached hereto, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous discussions, representations, negotiations, term sheets, and agreements relating to IP licensing. In the event of any conflict between the terms of this Agreement and any Governing Document on matters of IP licensing specifically, the terms of this Agreement shall govern and control.

Section 11.3 — Amendment

This Agreement may only be amended, modified, or supplemented by a written instrument duly executed by authorized representatives of both parties. No course of dealing, course of performance, or trade usage shall be used to modify this Agreement. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the waiving party, and no waiver shall constitute a continuing waiver of the same or any other provision.

Section 11.4 — Severability

If any provision of this Agreement is held by a court or other tribunal of competent jurisdiction to be invalid, illegal, or unenforceable for any reason, such provision shall be modified to the minimum extent necessary to make it valid and enforceable, or if such modification is not possible, severed from this Agreement, and the

remaining provisions shall continue in full force and effect. The parties shall negotiate in good faith a replacement provision that most nearly achieves the original intent and economic effect of any invalid provision.

Section 11.5 — Notices

All notices, requests, demands, and other communications required or permitted under this Agreement shall be in writing and shall be deemed duly delivered upon: (a) personal delivery; (b) deposit in the United States mail, certified or registered, return receipt requested, postage prepaid, addressed to the receiving party at the address set forth in the signature block; or (c) delivery by a nationally recognized overnight courier with written confirmation of receipt. A party may change its notice address by providing written notice to the other party in accordance with this Section.

Section 11.6 — No Agency

Nothing in this Agreement creates any agency, partnership, joint venture, employment, or fiduciary relationship between the parties. Neither party has the authority to bind the other party, make any representation on behalf of the other party, or incur any obligation or liability on behalf of the other party.

Section 11.7 — Counterparts; Electronic Signatures

This Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Delivery of a counterpart by electronic transmission (including PDF or DocuSign) shall be as effective as delivery of a manually signed original. Electronic signatures shall be deemed valid and binding to the same extent as original ink signatures.

Section 11.8 — Relationship to Governing Documents

This Agreement operates within the governance framework established by the AAES-OS Builder's Charter, the AAES-OS Founding Structure and Equity Framework, and the AAES-OS D-3 Tri-Core Founding Contribution Registry. The principles and definitions contained in those documents inform the interpretation of this Agreement and provide context for the parties' intent. However, this Agreement

is the operative and controlling instrument on all matters of IP licensing between the parties, and its terms shall govern in the event of any conflict with the Governing Documents specifically on licensing matters.

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ARTICLE 12 — SIGNATURE AND EXECUTION

IN WITNESS WHEREOF, the parties have executed this Intellectual Property License Agreement as of the date first written above, intending to be legally bound.

Licensor Jon Adams Halstead *Founder / Original Systems Architect Cognitive Core Steward — AAES-OS D-3 Tri-Core* Signature: Jon Adams Halstead *Jon Adams Halstead* Printed Name: Jon Adams Halstead Date: 6-16-2026 Address: 112 Valley View St, Grayling Mi, 49738

Licensee AAES-OS, Inc. *[State of incorporation and entity formation details to be inserted upon company formation]* Signature: *Authorized Signatory* Printed Name: Title: Date: Address:



Important Drafting Note — Remove Prior to Execution

This document is an execution draft prepared for internal governance purposes consistent with the AAES-OS Founding Structure and Equity Framework. It has not been reviewed by legal counsel and is not a substitute for legal advice.

PLACEHOLDERS appear in Sections 4.1, 4.2, and Exhibit B and must be completed by the parties with the assistance of qualified legal counsel prior to execution. Specifically: (1) the Licensor's equity percentage in Section 4.1 must be determined and documented in the Capitalization Table; and (2) the Licensing Revenue royalty rate in Section 4.2 must be negotiated and recorded in Exhibit B.

The parties are **strongly encouraged** to engage independent corporate counsel before executing this Agreement or any related governance instrument. This document should not be relied upon as final legal documentation until counsel review is complete

and all placeholders are resolved.

This notice must be removed from the final execution version of the Agreement.

EXHIBIT A

Licensed IP Schedule

Referenced in Section 1.1.1 of the Intellectual Property License Agreement (AAES-OS-IPLA-001)

The following schedule sets forth the Licensed IP as of the Effective Date, as documented in the AAES-OS D-3 Tri-Core Founding Contribution Registry v1.0, Entry 001. All items listed below are owned solely and exclusively by the Licensor, Jon Adams Halstead.

Item	Description	Registry Reference	Classification
AAES-OS Foundation	Original system concept, architectural philosophy, and structural design of the AAES-OS platform	Entry 001, Item 1	Origin IP
Genesis Protocol	Core behavioral rules, identity principles, and foundational operational constraints governing AAES-OS system behavior	Entry 001, Item 2	Origin IP — Core Protocol
Sovereign Substrate	System sovereignty layer and operational	Entry 001, Item 3	Origin IP — Core Architecture

Item	Description	Registry Reference	Classification
	boundary architecture defining the outer limits of AAES-OS system authority and conduct		
Lawbook Framework	Rule-and-authority framework governing agent behavior, inter-agent relationships, and system conduct within the AAES-OS environment	Entry 001, Item 4	Origin IP — Foundational Doctrine
Original Architecture and System Direction	All original design artifacts, system maps, conceptual frameworks, architectural diagrams, and directional documentation authored solely by the Licensor	Entry 001, Item 5	Origin IP — Architectural Direction
AAES-OS Name and Mark	The AAES-OS name, identity, brand, and associated trademarks or service marks as originally established by the Licensor	Entry 001	Origin IP — Identity

Note: This Schedule reflects the Licensed IP as documented in the AAES-OS D-3 Tri-Core Founding Contribution Registry v1.0, Entry 001, as of the Effective Date. It may be updated by a written amendment to this Agreement, executed by both parties, to reflect additional intellectual property created solely by the Licensor and expressly contributed to this Agreement subsequent to the Effective Date.

EXHIBIT B

Royalty Rate Schedule

Referenced in Section 4.2 of the Intellectual Property License Agreement (AAES-OS-IPLA-001)

EXECUTION PLACEHOLDER – Not Yet Finalized

The specific Royalty rate applicable to Licensing Revenue under Section 4.2 of this Agreement has not yet been agreed upon by the parties. This Exhibit serves as the designated location for that rate schedule once the parties have reached agreement. Prior to execution of the Agreement, the parties shall negotiate in good faith and insert the agreed rate(s) in this Exhibit, and this Exhibit shall be initialed by both parties.

Recommended Considerations for Negotiation:

59. **Industry Benchmarks:** Standard IP licensing royalties for foundational software architecture and platform technology typically range from **5%-15% of Licensing Revenue**, depending on the scope and exclusivity of the license, the stage of the company, and the market.
60. **Equity-Royalty Tradeoff:** The Licensor's equity position (Section 4.1) should be considered when establishing the royalty rate. A higher equity percentage may justify a lower royalty rate, and vice versa, as both mechanisms represent forms of compensation to the Licensor for the Licensed IP.
61. **Revenue Thresholds:** The parties may consider whether royalty rates should escalate (increase as revenue grows) or step down (decrease at higher revenue thresholds as an incentive to commercialize). Any tiered schedule should be set forth in a rate table within this Exhibit.
62. **Minimum Annual Payment:** The parties may consider whether a minimum annual Royalty payment is appropriate to ensure baseline compensation to the Licensor irrespective of Licensing Revenue performance in a given year.
63. **Sublicense Rates:** The parties should clarify whether the same rate applies to all Licensing Revenue or whether a different rate applies to sublicenses granted by the Licensee to third-party partners or platform operators.

Royalty Category	Applicable Rate	Notes
Licensing Revenue — Standard	[]%	To be agreed prior to execution
Licensing Revenue — Sublicense to Third Parties	[]%	To be agreed prior to execution
Minimum Annual Royalty (if any)	[\$]	To be agreed or confirmed as N/A

This Exhibit is not effective until completed, signed, and attached to the executed Agreement. All rates are subject to renegotiation upon a Change of Control pursuant to Section 9.2(b).

Agreed and accepted by the parties as of the date of execution of the Agreement:

Licensors Initials: Jon Adams Halstead *Jon Adams Halstead* Licensee Initials: *Authorized Signatory — AAES-OS, Inc.*